

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

CORY J. BENNETT, Plaintiff,

Civil Action No. 1:26-cv-01601-RP-DH

v.

**THE UNIVERSITY OF TEXAS AT
AUSTIN; EMILY HSIAO; JAMES G.
SCOTT; SALLY K. RAGSDALE; JAY
BARTROFF; KELLI BRADLEY; and
JEFF GRAVES**, Defendants.

**PLAINTIFF'S MOTION FOR ORDER DIRECTING ISSUANCE OF
SUMMONSES AND PRO SE ELECTRONIC-FILING INSTRUCTIONS**

Plaintiff Cory J. Bennett respectfully moves for an order directing the Clerk to issue the summonses needed for service, or to identify any remaining step needed for issuance, and to provide any remaining instructions needed to complete pro se electronic-filing access in this case.

Plaintiff files this motion now because the Court's July 2, 2026 text order denying Plaintiff's Motion for Preliminary Injunction and Request for Expedited Consideration, Dkt. 8, identified lack of notice as the immediate barrier to consideration of the preliminary-injunction request. Plaintiff cannot cure that barrier without issued summonses or other instructions for completing notice, and Plaintiff cannot use the Court's electronic-filing and electronic-notice process without the remaining steps needed to activate the access the Court has approved.

Relevant Facts

Plaintiff filed this civil-rights action and related initiating papers on June 12, 2026. Those papers included proposed summonses and an application for permission to file electronically. Plaintiff's public complaint, proposed summonses, and electronic-filing application used Plaintiff's private-mailbox mailing address, where Plaintiff can receive court mail. The electronic-filing application is attached as Exhibit A.

On June 24, 2026, the Court granted Plaintiff's Pro Se Motion for Permission to File Electronically, Dkt. 2. The text order stated that Plaintiff would receive further instructions from the Clerk's Office. The notice of that order is attached as Exhibit B.

Plaintiff also received a June 24, 2026 notice listing "ECF Registration Instructions Letter to Cory J. Bennett," Dkt. 6. The notice of electronic filing is attached as Exhibit C. The letter filed as Document 6 is attached as Exhibit D. That letter directs Plaintiff to submit a support-desk ticket, but it does not provide the party-request or account-linking steps later identified as necessary to connect Plaintiff's PACER account to this case.

As of July 3, 2026, Plaintiff has not received, by mail or otherwise, the issued summonses or instructions needed to complete service. Plaintiff also has not received instructions sufficient to complete the party-request or account-linking process for pro se electronic filing in this case.

On June 26, 2026, Plaintiff submitted a NextGen CM/ECF registration request for the Western District of Texas. The request was rejected the same day because the system treated the request as an attorney registration and stated that Plaintiff must submit a party request so that the account can be linked in this Court. Plaintiff contacted the Western District of Texas ECF Help Desk the same day. The Help Desk directed Plaintiff to the PACER Service Center. Plaintiff emailed the PACER Service Center on June 26, 2026. As of July 3, 2026, Plaintiff has not received a response from PACER. The registration-status notice and related correspondence are attached as Exhibit E.

The delay now affects the preliminary-injunction schedule. Dkt. 8 asked the Court to set any preliminary-injunction response and hearing schedule only after Defendants received service or another form of notice accepted under Rule 65(a)(1). The July 2 text order denied Dkt. 8 because Plaintiff had not shown notice of the motion or this lawsuit. Plaintiff seeks the administrative materials and instructions needed to complete notice, file proof of notice, and allow Defendants an opportunity to respond.

Basis for Relief

Federal Rule of Civil Procedure 4(b) provides that, after the complaint is filed, a plaintiff may present a summons to the Clerk for signature and seal and that, if the summons is properly completed, the Clerk must sign, seal, and issue it to the plaintiff for service. Rule 4(c)(1) makes Plaintiff responsible for service of the summons and complaint within the time allowed by Rule 4(m). Plaintiff cannot complete that responsibility without issued summonses or instructions for obtaining them.

Federal Rule of Civil Procedure 5(d)(3)(B) provides that an unrepresented person may file electronically only if allowed by court order or local rule. The Court has granted Plaintiff permission to file electronically, but the June 24 text order contemplated further instructions from the Clerk's Office. Plaintiff therefore needs the Clerk's instructions for any remaining party-request or registration step needed to activate the approved access.

The requested order would provide only the materials and instructions needed to complete notice and file proof, so that Dkt. 8 can be considered after Defendants have an opportunity to respond.

Requested Relief

Plaintiff asks the Court to direct the Clerk to issue summonses for each Defendant based on the proposed summonses already submitted, or to identify any remaining step required for issuance. Plaintiff also asks the Court to direct the Clerk to provide the instructions needed to complete the electronic-filing access approved by the June 24 text order, including any party-request step the Clerk requires.

No Defendant has appeared, and there is presently no opposing counsel with whom Plaintiff can confer regarding this motion.

Respectfully submitted,

Dated: July 3, 2026

Cory Bennett

Cory J. Bennett, Plaintiff Pro Se
Mailing Address: 6705 W Highway 290
Ste 607 PMB #268
City/State/ZIP: Austin, TX 78735-8407
Telephone: (512) 630-5607
Fax: None
Email: csquaredbennett@gmail.com

**EXHIBITS TO PLAINTIFF'S MOTION FOR SUMMONS ISSUANCE
AND PRO SE ELECTRONIC-FILING INSTRUCTIONS**

The following exhibits are submitted in support of Plaintiff's motion.

Exhibit	Description	Pages
Exhibit A	Document 2, application for permission to file electronically	6
Exhibit B	June 24, 2026 text order granting permission to file electronically	7
Exhibit C	June 24, 2026 notice listing ECF registration instructions letter	8
Exhibit D	Document 6, ECF registration letter	9
Exhibit E	NextGen CM/ECF registration-status and help-desk correspondence	10–12

Case 1:26-cv-01601-RP-DH Document 2 Filed 06/12/26 Page 1 of 1

Name: Cory J. Bennett
 Address: 6705 W Highway 290
Ste 607 PMB #268
Austin, TX 78735-8407
 Phone Number: (512) 630-5607
 Email Address: csquaredbennett@gmail.com
 Pro Se

FILED
 2026 JUN 12 PM 4:24
 CLERK, US DISTRICT COURT
 WESTERN DISTRICT OF TEXAS
 8E

UNITED STATES DISTRICT COURT
 WESTERN DISTRICT OF TEXAS

Cory J. Bennett v. The University of Texas at Austin; Emily Hsiao; James G. Scott; Sally K. Ragsdale; Jay Bartroff; Kelli Bradley; Jeff Graves PLAINTIFF(S) DEFENDANT(S)	CASE NUMBER 1:26CV01601RP APPLICATION FOR PERMISSION TO FILE ELECTRONICALLY
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As the ☒ Plaintiff ☐ Defendant in the above-captioned matter, I respectfully ask the Court for permission to participate in electronic filing ("e-filing") in this case. I hereby affirm that:

1. I have reviewed the Administrative Policies and Procedures for Electronic Filing in Civil and Criminal Cases and the Local Court Rules available on the Court's website at www.txwd.uscourts.gov.
2. I understand that once I register for e-filing, I will receive notices and documents in this instant case only by e-mail and not by U.S. mail.
3. I understand that if my use of the Court's e-filing system is unsatisfactory, my e-filing privileges may be revoked and I will be required to file documents in paper, but will continue to receive documents via e-mail.
4. I understand that I may not e-file on behalf of any other person in this case.
5. I have regular access to the technical requirements necessary to e-file successfully:

Check all that apply.

- ☒ A Computer with internet access.
- ☒ An email account on a daily basis to receive notifications from the Court and notices from the e-filing system.
- ☒ A scanner to convert documents that are only in paper format into electronic files.
- ☐ A printer or copier to create required paper copies such as chambers copies.
- ☒ A word-processing program to create documents; and
- ☒ A PDF reader and a PDF writer to convert word processing documents into PDF format, the only electronic format in which documents can be e-filed.

Date: June 11, 2026

Signature: Cory Bennett



C&C Bennett <csquaredbennett@gmail.com>

Activity in Case 1:26-cv-01601-RP-DH Bennett v. The University of Texas at Austin et al Order on Motion for Electronic Filing

1 message

TXW_USDC_Notice@txwd.uscourts.gov <TXW_USDC_Notice@txwd.uscourts.gov>
To: cmecf_notices@txwd.uscourts.gov

Wed, Jun 24, 2026 at 2:52 PM

This is an automatic e-mail message generated by the CM/ECF system. Please DO NOT RESPOND to this e-mail because the mail box is unattended.

*****NOTE TO PUBLIC ACCESS USERS***** Judicial Conference of the United States policy permits attorneys of record and parties in a case (including pro se litigants) to receive one free electronic copy of all documents filed electronically, if receipt is required by law or directed by the filer. PACER access fees apply to all other users. To avoid later charges, download a copy of each document during this first viewing. However, if the referenced document is a transcript, the free copy and 30 page limit do not apply.

U.S. District Court [LIVE]

Western District of Texas

Notice of Electronic Filing

The following transaction was entered on 06/24/2026 at 11:16:16 AM CDT and filed on 06/24/2026

Case Name: Bennett v. The University of Texas at Austin et al

Case Number: [1:26-cv-01601-RP-DH](#)

Filer:

Document Number:

Docket Text:

Text Order GRANTING [2] Pro Se Motion for Permission to file Electronically entered by Judge Robert Pitman. Plaintiff will receive further instructions from the Clerk's Office. Plaintiff is not required to file electronically, but the Court strongly recommends that Plaintiff register as soon as possible after receiving the instructions. Once Plaintiff registers, the Court will assume that Plaintiff timely receives electronic notifications and reviews all docket activity. (This is a text-only entry generated by the court. There is no document associated with this entry.) (MHlc)

1:26-cv-01601-RP-DH Notice has been electronically mailed to:

Cory J. Bennett csquaredbennett@gmail.com

1:26-cv-01601-RP-DH Notice has been delivered by other means to:

The following document(s) are associated with this transaction:

This is a re-generated NEF. Created on 6/24/2026 at 2:52 PM CDT



C&C Bennett <csquaredbennett@gmail.com>

**Activity in Case 1:26-cv-01601-RP-DH Bennett v. The University of Texas at Austin et al
Letter/Correspondence**

1 message

TXW_USDC_Notice@txwd.uscourts.gov <TXW_USDC_Notice@txwd.uscourts.gov>
To: cmecf_notices@txwd.uscourts.gov

Wed, Jun 24, 2026 at 2:53 PM

This is an automatic e-mail message generated by the CM/ECF system. Please DO NOT RESPOND to this e-mail because the mail box is unattended.

*****NOTE TO PUBLIC ACCESS USERS***** Judicial Conference of the United States policy permits attorneys of record and parties in a case (including pro se litigants) to receive one free electronic copy of all documents filed electronically, if receipt is required by law or directed by the filer. PACER access fees apply to all other users. To avoid later charges, download a copy of each document during this first viewing. However, if the referenced document is a transcript, the free copy and 30 page limit do not apply.

U.S. District Court [LIVE]

Western District of Texas

Notice of Electronic Filing

The following transaction was entered on 6/24/2026 at 2:53 PM CDT and filed on 6/24/2026

Case Name: Bennett v. The University of Texas at Austin et al

Case Number: [1:26-cv-01601-RP-DH](#)

Filer: Cory J. Bennett

Document Number: 6

Docket Text:

[ECF Registration Instructions Letter to Cory J. Bennett. \(cnr\)](#)

1:26-cv-01601-RP-DH Notice has been electronically mailed to:

Cory J. Bennett csquaredbennett@gmail.com

1:26-cv-01601-RP-DH Notice has been delivered by other means to:

The following document(s) are associated with this transaction:

Document description:Main Document

Original filename:n/a

Electronic document Stamp:

[STAMP dcecfStamp_ID=1080075687 [Date=6/24/2026] [FileNumber=34690470-0] [a15aba7253cfae1a95b40fcf36e60fb68def3ba3187e458c0d476f27e41c98342db9a6b5c5d0513d0cfea9db1c10a4f5e531c912fa9659e5dd28a64eb8665447]]



**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
501 West Fifth Street, Suite 1100
Austin, Texas 78701**

PHILIP J. DEVLIN
CLERK OF COURT

ANNETTE FRENCH
CHIEF DEPUTY

Pro Se Filer

RE: ECF Registration in Federal Court Case

To whom it may concern,

The court has granted your motion for permission to file electronically. If you have not already set up your filing permissions, please submit a Support Desk Ticket on our website:

www.TXWD.USCourts.gov

Once on the website, select the **CM/ECF** option on the blue bar at the top (third option from the right). On the CM/ECF page, under the **General** section (first paragraph in the left column) please click on the blue hyperlink for the **Support Desk**:

General

Please note that you may e-file **at any time**, but **CM/ECF support (ECF Support Desk)** is only offered Monday through Friday, 9:00 a.m. to 6:00 p.m. **CST**, excluding court holidays. No after hours support is available. **When relevant, please include the Case Number and the Judge's initials in the Subject: line of all e-mails to the court.**

The link will open an email window. Please complete the email in order to submit the ticket requesting assistance with filing permissions. Be sure to include your name and case number.

The ticket will be assigned and a representative from the help desk will contact you directly. Please note: the district clerk's office does not have the ability to set up electronic filing for you. It must be processed through the Support Desk.

Thank you for your prompt attention to this matter.

Sincerely,

A handwritten signature in blue ink that reads "Christian Rodriguez".

Christian Rodriguez, Deputy Clerk



C&C Bennett <csquaredbennett@gmail.com>

NextGen CM/ECF Registration Status

7 messages

do_not_reply@psc.uscourts.gov <do_not_reply@psc.uscourts.gov>

Fri, Jun 26, 2026 at 9:46 AM

Reply-To: txwd_ecf_help@txwd.uscourts.gov
To: csquaredbennett@gmail.com

This email is notification that your NextGen CM/ECF electronic filing registration has been processed. You may check your E-Filing Status by visiting the "Manage My Account" section of the PACER web site and selecting "Check E-File Status" option from the "Maintenance" tab or use this link, <https://pacer.psc.uscourts.gov/pscof/manage/efileStatus.jsf>.

Account Number: [REDACTED]

Court: TEXAS WESTERN DISTRICT COURT

Date/Time Submitted: 06/26/2026 09:44:02 CDT

Transaction ID: 62695

Request: Registration

Transaction Status: Rejected

Comment: Your submission identified you as an attorney. You must submit a party request so that we can link to your account in the court, which is not an attorney account. Thank you

NOTE: Please do not reply to this message. This is an automated message sent from an unmonitored mailbox. If you have questions or comments, please email them to txwd_ecf_help@txwd.uscourts.gov.

C&C Bennett <csquaredbennett@gmail.com>

Fri, Jun 26, 2026 at 9:50 AM

To: TXWD_ECF_help <txwd_ecf_help@txwd.uscourts.gov>

Hi,

It doesn't appear that pro se filers can complete e-filing registration due to how the form is set up. There is no option to change my role to a non-attorney role, and there doesn't appear to be another registration option for pro-se. My request was automatically rejected due to this.

Cory Bennett

(512) 630-5607

csquaredbennett@gmail.com

Account Number	[REDACTED]
Username	coryjaybennett
Amount Due	\$0.00
Account Balance	\$0.00
Case Search Status	Active
Account Type	Upgraded PACER Account
Multifactor Auth	Not Enrolled (Enroll)

Complete all sections of E-File Registration

Filer Information

* Required Information

Role in Court: Attorney

Title:

Name: Cory Bennett

☐ I acknowledge that I am submitting the e-file registration for the individual listed above. Note: If more than one individual uses this account, you must create a new PACER account for the individual who needs e-filing privileges, if she or he does not already have one.*

[Quoted text hidden]

TXWD_ECF_help <txwd_ecf_help@txwd.uscourts.gov>

Fri, Jun 26, 2026 at 10:09 AM

To: C&C Bennett <csquaredbennett@gmail.com>

Please contact the PACER Service Center. I am not sure if there's an issue with how your PACER account was established or not.

PACER Service Center

(800) 676-6856

pacer@psc.uscourts.gov

Just to confirm, are you also an attorney?

TXWD ECF Help Desk
U.S. District Court
Western District of Texas
Support Hours: 8am - 5pm CT

Please visit our website: www.txwd.uscourts.gov

From: C&C Bennett <csquaredbennett@gmail.com>
Sent: Friday, June 26, 2026 9:51 AM
To: TXWD_ECF_help <txwd_ecf_help@txwd.uscourts.gov>
Subject: Re: NextGen CM/ECF Registration Status

CAUTION - EXTERNAL:

Hi,

It doesn't appear that pro se filers can complete e-filing registration due to how the form is set up. There is no option to change my role to a non-attorney role, and there doesn't appear to be another registration option for pro-se. My request was automatically rejected due to this.

Cory Bennett

(512) 630-5607

csquaredbennett@gmail.com

The screenshot shows a web form for E-File Registration. At the top, there's a table with account details: Account Number (redacted), Username (coryjaybennett), Amount Due (\$0.00), Account Balance (\$0.00), Case Search Status (Active), Account Type (Upgraded PACER Account), and Multifactor Auth (Not Enrolled with an Enroll link). Below this is a section titled 'Complete all sections of E-File Registration' with a sub-section 'Filer Information'. Under 'Filer Information', there's a red asterisk indicating required information. The form fields show: Role in Court (Attorney), Title (a dropdown menu with 'Select a title or enter your own'), Name (Cory Bennett), and an unchecked checkbox for acknowledging the submission for an individual. A note at the bottom of the checkbox states: 'Note: If more than one individual uses this account, you must create a new PACER account for the individual who needs e-filing privileges, if she or he does not already have one.*'

----- Forwarded message -----
From: <do_not_reply@psc.uscourts.gov>
Date: Fri, Jun 26, 2026 at 9:47 AM
Subject: NextGen CM/ECF Registration Status
To: <csquaredbennett@gmail.com>

This email is notification that your NextGen CM/ECF electronic filing registration has been processed. You may check your E-Filing Status by visiting the "Manage My Account" section of the PACER web site and selecting "Check E-File Status" option from the "Maintenance" tab or use this link, <https://pacer.psc.uscourts.gov/pscof/manage/efileStatus.jsf>.

Account Number: [REDACTED]
Court: TEXAS WESTERN DISTRICT COURT
Date/Time Submitted: 06/26/2026 09:44:02 CDT
Transaction ID: 62695
Request: Registration
Transaction Status: Rejected
Comment: Your submission identified you as an attorney. You must submit a party request so that we can link to your account in the court, which is not an attorney account. Thank you

NOTE: Please do not reply to this message. This is an automated message sent from an unmonitored mailbox. If you have questions or comments, please email them to txwd_ecf_help@txwd.uscourts.gov.

CAUTION - EXTERNAL EMAIL: This email originated outside the Judiciary. Exercise caution when opening attachments or clicking on links.

C&C Bennett <csquaredbennett@gmail.com>
To: TXWD_ECF_help <txwd_ecf_help@txwd.uscourts.gov>

Fri, Jun 26, 2026 at 10:15 AM

Hi,
No, I'm not an attorney. I am a pro-se filer, and I don't recall anything attorney-specific in registration for PACER.

I'll go ahead and contact them then. Thank you for your assistance.

Best regards,

Cory Bennett
(512) 630-5607
csquaredbennett@gmail.com
[Quoted text hidden]

C&C Bennett <csquaredbennett@gmail.com>
To: pacer@psc.uscourts.gov

Fri, Jun 26, 2026 at 10:16 AM

Hi,
It doesn't appear that pro se filers can complete e-filing registration due to how the form is set up. There is no option to change my role to a non-attorney role, and there doesn't appear to be another registration option for pro-se. My request was automatically rejected due to this.

I contacted the TXWD ECF help desk about this and they directed me to you. I am wondering if I can get assistance with this.
[Quoted text hidden]

TXWD_ECF_help <txwd_ecf_help@txwd.uscourts.gov>
To: C&C Bennett <csquaredbennett@gmail.com>

Fri, Jun 26, 2026 at 10:23 AM

Thank you!

[Quoted text hidden]

C&C Bennett <csquaredbennett@gmail.com>
To: pacer@psc.uscourts.gov

Fri, Jul 3, 2026 at 12:08 PM

Hi,
I am a pro se plaintiff in Bennett v. The University of Texas at Austin et al., No. 1:26-cv-01601-RP-DH. My NextGen CM/ECF registration request for the Western District of Texas was rejected on June 26, 2026 because the system treated it as an attorney registration. The TXWD ECF Help Desk directed me to contact PACER, and I emailed PACER on June 26, 2026.

As of July 3, 2026, I have not received a response. I also have not received the summons or instructions needed to complete service and electronic filing.

Please advise what steps I need to take to complete pro se electronic filing registration and obtain the materials or instructions needed for service.

Cory Bennett
(512) 630-5607
csquaredbennett@gmail.com
[Quoted text hidden]